

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 10

Honorable Jeffrey B. El-Hajj

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: June 23, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

9:00 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	26CV483726	In Re: 1510 Welburn Avenue, Gilroy, CA 95020	Petitioner National Default Servicing Corporation's motion for order granting petition to deposit surplus proceeds of trustee's sale. (Civ. Code, § 2924j, subd. (c).) Notice is proper and the motion is unopposed. Petitioner seeks to deposit \$308,462.19 with the court, representing surplus funds following a non-judicial foreclosure sale of real property commonly known as 1510 Welburn Avenue, Gilroy, CA 95020. The motion is GRANTED. Petitioner is ordered to deposit with the clerk of the Santa Clara County Superior Court \$308,462.19. Upon depositing those sale proceeds, petitioner (1) shall be discharged of further responsibility for disbursement of the sale proceeds; and (2) will be excused from further participation in this case. The court will hold a hearing on September 1, 2026, at 9:00 a.m. in Department 10 regarding any claims to the funds. The court will provide notice of that hearing to the potential claimants identified in the petition. Any claim must be filed at least 15 days before the September 1, 2026, hearing; any claim must include supporting documentation substantiating the claimant's entitlement to the surplus funds. (Civ. Code, § 2924j, subd. (d).) The court notes Barry Bakarian, Jr., as personal representative of the estate of Barry Bakarian, has already filed a claim to the surplus funds. That claim will be considered along with any other timely claims at the September 2026 hearing. The court will prepare the order.
Line 2	24CV447771	Lingxiao Yang v. Mengxiong Liu et al.	Click LINE 2 or scroll down for ruling.

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Line 3	25CV459257	Alexander Xue v. CRJ Partners V, LLC	Defendant CRJ Partners V, LLC's demurrer to the complaint. Notice is not proper; there is no proof of service of the demurrer or its supporting documents. The hearing on the demurrer is CONTINUED to February 4, 2027, at 9:00 a.m. in Department 10. Defendant is ordered to file a new notice of demurrer reflecting the new hearing date. Defendant must serve plaintiff with the new notice, the demurrer, and all supporting documents. The court will prepare the order.
Line 4	23CV427303	Highlander Home, Inc. v. Walmart, Inc.	Click LINE 4 or scroll down for ruling.
Line 5	24CV444940	Bank of America, N.A. v. Anthony Snyder	Plaintiff Bank of America, N.A.'s motion to vacate dismissal and enter judgment by stipulation against defendant Anthony Snyder. (Code Civ. Proc., § 664.6.) Notice is proper and the motion is unopposed. The parties signed a stipulation for entry of judgment in 2024, under which defendant agreed to make installment payments to pay off a debt. A declaration in support of the motion indicates defendant stopped making payments. On good cause shown, the motion is GRANTED. The November 19, 2024 order of dismissal is VACATED. Moving party to submit proposed order and proposed judgment, indicating damages of \$6,355.22 and costs of \$643.56.
Line 6	25CV465581	Christina Hatzistratis v. Powerflex Solar, LLC	Click LINE 6 or scroll down for ruling.

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9:01 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	24CV453871	Cathleen Bauer v. Ford Motor Company et al	Plaintiff's counsel's motion to be relieved as counsel. <u>Parties to appear.</u>

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